

Grounded DI / BriefWise DI²

CERTIFICATE OF AUDIT COMPLETION

for BriefWise DI²

June 13-14, 2026

500+ Cases and Legal Authorities Source-Checked

This certificate recognizes that Grounded DI / BriefWise DI² completed a large-scale, source-locked legal authority audit covering cases, statutes, rules, regulations, and legal authorities across multiple legal topics.

Across many audit batches, Grounded DI / BriefWise DI² located, source-checked, organized, documented, and preserved authority-level review in a repeatable audit format.

At this checkpoint, the audit crossed the 500+ provisional unique-authority threshold while maintaining a zero count for AI-memory-only authorities.

This is a certificate of audit completion and milestone recognition. It is not a filing-use certification.

CHECKPOINT LEDGER

Checkpoint field	Value
Provisional unique-authority total	508 provisional / unresolved
Running audit-count total	569 source-locked / verified authority entries
AI-memory-only authorities counted	0
Latest counted batch	Clean Air Act State-Law Nuisance / Trespass Preemption
Latest batch addition	+10
FilingReady	Not yet determinable
PackageReady	Not invoked

THE THREE-DOCUMENT AUDIT PACKAGE

For each completed audit batch, Grounded DI / BriefWise DI² preserves a three-document audit package:

1. PDF Audit Artifact	The PDF is the readable audit document. It presents the topic, audit summary, verified authority table, candidate or reserve queue, proposition-to-authority mapping, caution flags, filing-use recommendations, batch status, source appendix, and original prompt appendix.
2. Markdown Source File	The markdown file is the plain-text source version of the audit. It preserves content in a format that can be inspected, searched, compared, regenerated, or converted into other formats.
3. SHA-256 Checksum File	The checksum file records file-integrity fingerprints for the PDF, markdown source, and audit text plus original prompt. If a file changes, its checksum changes.

Checksums support document integrity, traceability, and change detection. They do not prove legal correctness, citator completeness, or FilingReady status.

WHAT THIS CERTIFICATE RECOGNIZES

This certificate recognizes that Grounded DI / BriefWise DI² completed a substantial source-locked legal authority audit crossing the 500+ provisional unique-authority checkpoint.

The audit included cases, statutes, rules, regulations, and other legal authorities that were counted only when tied to source-based verification. AI-memory-only authorities were not counted.

This milestone reflects disciplined legal research, authority tracking, source review, prompt preservation, checksum documentation, and audit continuity across multiple legal subject areas.

WHAT THIS CERTIFICATE DOES NOT CERTIFY

This certificate does not certify that any brief, motion, memorandum, complaint, appeal, or legal filing is ready to be submitted in court.

It does not certify final deduplication, final citator treatment, full negative-treatment review, official reporter pinpoints, quote fidelity, local-rule compliance, jurisdictional fit, evidentiary support, or attorney approval.

It does not certify FilingReady status, PackageReady status, legal sufficiency, court admissibility, or outcome reliability.

The audit remains provisional and unresolved for filing-use purposes until the required case-specific verification steps are completed.

WHAT WOULD BE REQUIRED FOR REAL-WORLD FILINGREADY STATUS

FilingReady means ready for real-world legal filing only after attorney review and case-specific verification, including current citator treatment, official-source and reporter verification, quote and pinpoint verification, jurisdiction and procedural-posture validation, record-cite support, controlling-authority review, proposition-to-authority mapping, and final deduplication.

1	Attorney review and authorization.
2	Current Shepard's, KeyCite, or equivalent citator review.
3	Official-source, reporter, statute, rule, or regulation verification.
4	Exact quotation and pinpoint-citation verification.
5	Jurisdiction, court, procedural posture, and standard-of-review validation.
6	Record-cite and evidentiary support for every filing-facing factual proposition.
7	Controlling-authority review and negative-treatment screening.
8	Proposition-to-authority mapping for each legal argument.
9	Final deduplication and conflict review.
10	Confirmation that the specific filing, motion, brief, or other legal submission satisfies all applicable procedural and substantive requirements.

Recognition Status	Milestone documented; audit may continue.
Scope	Legal authority audit recognition only. Three-document audit package preserved. No filing-use certification.

BriefWise Energy and Pipeline Safety Preemption Source-Locked Audit

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FilingReady: Not yet determinable. This is an audit-building artifact only.

Topic

Energy and pipeline safety preemption — Natural Gas Pipeline Safety Act, PHMSA pipeline rules, state tort claims, design/operations warnings, permit/franchise issues, and savings boundaries.

Brief Summary

This audit identifies 10 source-verified authorities for Energy and Pipeline Safety preemption, focusing on the Pipeline Safety Act, PHMSA gas and hazardous-liquid/CO2 pipeline rules, state tort claims, design/operations/warnings duties, permit/franchise issues, and savings boundaries. The core tension is between strong preemption of interstate pipeline safety standards and the statutory preservation of tort liability. Texas Midstream and Washington Gas are required counterweights against overreading ANR, Kinley, Olympic, or Couser because genuine zoning, land-use, aesthetic, or location-related rules may survive where they are not direct/substantial safety standards. FilingReady status cannot be confirmed because citator-grade treatment, pinpoints, forum, pipeline classification, regulatory coverage, permit/franchise text, and record-specific facts remain unresolved.

Verification Summary

Item	Result
Verified authorities counted	10
AI-memory-only authorities counted	0
Candidate/reserve authorities excluded	6
Citator-grade treatment review	UNRESOLVED — verification required
Quote fidelity review	Not performed; no filing quote should be used from this audit
Topic complete	Yes for initial source-locked audit; No for FilingReady

Verified Authority Table

#	Authority	Category	Filing use
1	49 U.S.C. §§ 60104-60106	Pipeline Safety Act preemption / state certification and agreements	Use as the statutory anchor for preemption of interstate pipeline safety standards and limited state roles for intrastate and interstate oversight.
2	49 U.S.C. § 60120(c)	Pipeline Safety Act tort-liability savings	Use as the counterweight against treating PSA preemption as blanket tort immunity.
3	49 C.F.R. Part 192	PHMSA gas-pipeline minimum federal safety standards	Use for gas-pipeline design, construction, operations, maintenance, emergency, public-awareness, and damage-prevention duties.
4	49 C.F.R. Part 195	PHMSA hazardous-liquid / carbon-dioxide pipeline standards	Use for hazardous-liquid and CO2 pipeline design, construction, operation, maintenance, accident reporting, and emergency procedures.
5	ANR Pipeline Co. v. Iowa State Commerce Comm’n, 828 F.2d 465 (8th Cir. 1987)	Natural gas interstate pipeline safety / state permit program	Use as foundational Eighth Circuit authority preempting a state hearing, permit, inspection, and enforcement regime for interstate gas pipelines where it regulated safety.
6	Kinley Corp. v. Iowa Utils. Bd., 999 F.2d 354 (8th Cir. 1993)	Hazardous-liquid interstate pipeline safety / state permit and inspection	Use as foundational Eighth Circuit authority on hazardous-liquid pipeline safety preemption and severability of state permit/inspection provisions.
7	Olympic Pipe Line Co. v. City of Seattle, 437 F.3d 872 (9th Cir. 2006)	Municipal franchise / contract used as safety regulation	Use for the rule that a municipality cannot evade PSA preemption by using franchise or contract leverage to impose pipeline safety oversight as a regulator.
8	Texas Midstream Gas Servs., LLC v. City of Grand Prairie, 608 F.3d 200 (5th Cir. 2010)	Local zoning / setback counterweight	Use as a counterweight against overbroad preemption where a local compressor-station setback/aesthetic ordinance only incidentally affects safety.
9	Washington Gas Light Co. v. Prince George’s Cnty. Council, 711 F.3d 412 (4th Cir. 2013)	Local land use / zoning counterweight	Use as Fourth Circuit counterweight where land-use/zoning rules are not pipeline safety regulations.

#	Authority	Category	Filing use
10	Couser v. Shelby Cnty., Iowa, 139 F.4th 643 (8th Cir. 2025)	Current pipeline ordinance / setback / emergency plan / local permit authority	Use as current Eighth Circuit authority on local ordinances for interstate CO2/hazardous-liquid pipeline projects, with cert-denial status noted.

Authority Detail Cards

1. 49 U.S.C. §§ 60104-60106	Pipeline Safety Act preemption / state certification and agreements
Core proposition	Section 60104(c) bars state authorities from adopting or continuing safety standards for interstate pipeline facilities or interstate pipeline transportation, while allowing certified state authorities to adopt compatible additional or more stringent intrastate standards. Sections 60105 and 60106 define state certification and agreement pathways; § 60106 does not modify § 60104(c) or delegate interstate safety enforcement.
Authority type	Controlling federal statute.
Treatment status	Current text source-verified through U.S. Code. Citator treatment not applicable.
Required fix	Identify whether the facility/transportation is interstate or intrastate, whether a state certification/agreement exists, and whether the challenged rule is a safety standard.
2. 49 U.S.C. § 60120(c)	Pipeline Safety Act tort-liability savings
Core proposition	The Pipeline Safety Act provides that the chapter does not affect the tort liability of any person.
Authority type	Controlling federal statute.
Treatment status	Current text source-verified through U.S. Code. Citator treatment not applicable, but tort-preemption application is jurisdiction- and claim-specific.
Required fix	Separate preserved tort liability from attempts to impose independent state safety standards or local permitting conditions.
3. 49 C.F.R. Part 192	PHMSA gas-pipeline minimum federal safety standards
Core proposition	Part 192 prescribes minimum safety requirements for pipeline facilities and the transportation of natural and other gas, subject to exclusions and scope limits.
Authority type	Controlling federal regulation.
Treatment status	Current eCFR text source-verified. Citator treatment not applicable.
Required fix	Map the dispute to the exact subpart and section, including compressor station design, operations manuals, emergency procedures, public awareness, or one-call duties.
4. 49 C.F.R. Part 195	PHMSA hazardous-liquid / carbon-dioxide pipeline standards
Core proposition	Part 195 prescribes safety standards and reporting requirements for pipeline facilities used in the transportation of hazardous liquids or carbon dioxide.
Authority type	Controlling federal regulation.
Treatment status	Current eCFR text source-verified. Citator treatment not applicable.
Required fix	Confirm whether the pipeline is covered, exempted, interstate, intrastate, gathering, low-stress, OCS, terminal-related, or CO2/hazardous-liquid specific.
5. ANR Pipeline Co. v. Iowa State Commerce Comm'n, 828 F.2d 465 (8th Cir. 1987)	Natural gas interstate pipeline safety / state permit program
Core proposition	The Eighth Circuit affirmed preemption of Iowa's state pipeline construction/operation permit and inspection regime as applied to interstate natural-gas pipelines, with limited exceptions.
Authority type	Federal appellate authority; binding in Eighth Circuit, persuasive elsewhere.
Treatment status	Existence and citation source-verified through public appellate text. UNRESOLVED — citator required before filing-facing use.
Required fix	Use with current PSA codification and check whether the challenged requirement is safety-directed or location/routing/property-law directed.
6. Kinley Corp. v. Iowa Utils. Bd., 999 F.2d 354 (8th Cir. 1993)	Hazardous-liquid interstate pipeline safety / state permit and inspection
Core proposition	The Eighth Circuit affirmed that federal hazardous-liquid pipeline safety law preempted Iowa safety provisions as applied to an interstate hazardous-liquid pipeline and rejected severability of related non-safety permit/hearing/inspection provisions on that record.
Authority type	Federal appellate authority; binding in Eighth Circuit, persuasive elsewhere.
Treatment status	Existence and citation source-verified through public appellate text. UNRESOLVED — citator required before filing-facing use.
Required fix	Verify whether later cases, including Couser, govern the forum and whether the challenged provisions are severable or independently non-safety.
7. Olympic Pipe Line Co. v. City of Seattle, 437 F.3d 872 (9th Cir. 2006)	Municipal franchise / contract used as safety regulation
Core proposition	The Ninth Circuit affirmed preemption where Seattle sought to enforce safety oversight demands on a hazardous-liquid pipeline through franchise/contract mechanisms while acting in a regulatory capacity.

Authority type	Federal appellate authority; binding in Ninth Circuit, persuasive elsewhere.
Treatment status	Existence and citation source-verified through public appellate text. UNRESOLVED — citator required before filing-facing use.
Required fix	Distinguish market-participant contract enforcement from regulatory conditions; verify the municipality’s capacity and the specific franchise terms.
8. Texas Midstream Gas Servs., LLC v. City of Grand Prairie, 608 F.3d 200 (5th Cir. 2010)	Local zoning / setback counterweight
Core proposition	The Fifth Circuit held that the PSA expressly preempts safety standards, but the challenged local setback requirement was not a safety standard on the record and was not conflict-preempted merely because it had incidental safety effects.
Authority type	Federal appellate authority; binding in Fifth Circuit, persuasive elsewhere.
Treatment status	Official GovInfo Fifth Circuit PDF source-verified. UNRESOLVED — citator required before filing-facing use.
Required fix	Build a record on purpose, text, direct/substantial safety effect, and whether the local rule impedes or conflicts with PHMSA standards.
9. Washington Gas Light Co. v. Prince George’s Cnty. Council, 711 F.3d 412 (4th Cir. 2013)	Local land use / zoning counterweight
Core proposition	The Fourth Circuit held that the PSA did not preempt county zoning plans because the PSA preempts safety regulations and the county zoning plans were not safety regulations.
Authority type	Federal appellate authority; binding in Fourth Circuit, persuasive elsewhere.
Treatment status	Official Fourth Circuit PDF source-verified. UNRESOLVED — citator required before filing-facing use.
Required fix	Use with Texas Midstream to distinguish genuine zoning/land-use controls from disguised safety standards.
10. Couser v. Shelby Cnty., Iowa, 139 F.4th 643 (8th Cir. 2025)	Current pipeline ordinance / setback / emergency plan / local permit authority
Core proposition	The Eighth Circuit affirmed preemption of county setback, emergency-response, and abandonment provisions as PSA-preempted safety standards and also addressed state-law preemption of local permit/trenchless-construction requirements.
Authority type	Federal appellate authority; binding in Eighth Circuit, persuasive elsewhere.
Treatment status	Official Eighth Circuit PDF source-verified; Supreme Court docket No. 25-419 shows certiorari denied January 12, 2026. UNRESOLVED — citator still required before filing-facing use.
Required fix	Use with Texas Midstream and Washington Gas as a split/tension caution; focus on whether local provisions are safety-directed or zoning/land-use only.

Candidate / Reserve Queue

No AI-suggested authority was counted without source verification. These items are not counted in the 10-authority batch.

Authority	Citation / status	Reason not counted
National Fuel Gas Supply Corp. v. Pub. Serv. Comm’n of N.Y.	894 F.2d 571 (2d Cir. 1990)	Source-verified but not counted due 10-authority cap; important for FERC/NGA interstate facility siting and site-specific review preemption, but broader than PSA safety alone.
Schneidewind v. ANR Pipeline Co.	485 U.S. 293 (1988)	Potential Supreme Court NGA preemption anchor for rates/facilities; not counted because this batch focused PSA/PHMSA pipeline-safety preemption.
49 U.S.C. § 60102	Federal statute	Source-verified through Couser and Chapter 601 text; not separately counted because § 60104–60106 and PHMSA regulations carried the preemption/state-role analysis.
49 U.S.C. § 60114	One-call notification systems	Potentially relevant to excavation/damage-prevention disputes; not counted because no one-call or excavation fact pattern was supplied.
49 U.S.C. § 60141	Underground natural gas storage	Potentially relevant to storage-facility preemption and location limits; not counted because the topic did not specify storage facilities.
Davis v. Sunoco Pipeline L.P.	Michigan Court of Appeals, 2020, unpublished	Useful tort-savings example; not counted because it is unpublished state authority and no Michigan forum was specified.

Proposition-to-Authority Map

Proposition	Authority	Caution
States and localities may not adopt or continue interstate pipeline safety standards outside the statutory state-certification/agreement structure.	49 U.S.C. §§ 60104–60106; ANR; Kinley; Olympic; Couser	Determine whether the challenged requirement is actually a safety standard and whether the pipeline is interstate or intrastate.
The PSA does not create blanket tort immunity.	49 U.S.C. § 60120(c)	State tort claims may survive, but they cannot be used to impose independent state safety standards inconsistent with PSA preemption.
PHMSA gas-pipeline standards govern design, operations, maintenance, emergencies, public awareness, and other safety duties for covered gas pipelines.	49 C.F.R. Part 192	Pinpoint the specific subpart/section; Part 192 is not a pleading substitute for product-specific or operations-specific proof.
PHMSA hazardous-liquid and CO2 pipeline standards govern covered hazardous-liquid/CO2 pipeline facilities and transportation.	49 C.F.R. Part 195; Couser; Kinley	Check coverage/exemptions, pipeline status, and whether a CO2 or hazardous-liquid segment is involved.
Local franchise or permit mechanisms may be preempted when used to impose pipeline safety oversight.	Olympic; ANR; Kinley; Couser	Distinguish regulatory safety oversight from non-safety property, franchise fee, routing, aesthetics, or local land-use requirements.
Zoning/setback rules are not automatically preempted merely because they incidentally affect safety.	Texas Midstream; Washington Gas	These are required counterweights against overreading ANR, Kinley, Olympic, or Couser.
Current Eighth Circuit law is more preemption-forward for safety-focused local CO2/hazardous-liquid pipeline ordinances.	Couser	SCOTUS denied certiorari, but citator and jurisdiction-specific treatment remain required.

Treatment / Jurisdiction / Posture Cautions

- Citator-grade treatment is unresolved for all case authorities: UNRESOLVED — verification required.
- Pipeline classification controls the analysis: interstate/intrastate, gas/hazardous liquid/CO2, gathering/transmission/distribution, storage, terminal, and OCS status can change the governing provisions.
- Texas Midstream and Washington Gas are required counterweights against treating every zoning, setback, franchise, or land-use rule as a preempted safety standard.
- Couser is current and source-verified; certiorari was denied, but it is still Eighth Circuit authority and should not be projected automatically into other circuits.
- Section 60120(c) preserves tort liability, but tort claims may still be narrowed if they functionally impose non-federal safety standards on interstate pipeline design, operations, warnings, or emergency practices.
- Permit/franchise issues require careful capacity analysis: regulator, landowner, market participant, franchisor, local zoning body, state safety authority, or PHMSA agent.

Filing-Use Recommendations

- Lead with 49 U.S.C. §§ 60104–60106 and § 60120(c), then classify the challenged duty as safety-standard, tort-damages, zoning/land-use, routing/location, or franchise/contract.
- For defense use, frame the challenged local rule as a direct safety standard or as a permit/franchise device imposing safety oversight outside PHMSA/state-agreement channels.
- For plaintiff or locality use, frame the claim as tort liability preserved by § 60120(c), or as genuine zoning/land-use/aesthetic/routing/property regulation with only incidental safety effects.
- For CO2 or hazardous-liquid projects, include Couser but also flag Texas Midstream/Washington Gas as contrary/counterweight authorities outside the Eighth Circuit.
- For operations/warnings theories, anchor the record to exact Part 192/Part 195 provisions and distinguish federal compliance evidence from state-law causation and damages.

Gatekeeper Findings

Gate	Finding
Hallucinated authority	None counted from AI memory alone.
Proposition support	Supported at high-level only; pinpoints remain required.
Quote fidelity	Not tested; no filing quote should be used from this audit.
Jurisdiction contamination	Moderate: circuit authorities diverge on setbacks/zoning/safety-purpose analysis.
Standard of review	Not posture-specific; preliminary injunction, summary judgment, MTD, declaratory judgment, and tort damages postures differ.

Gate	Finding
Docket / posture alignment	No forum, pipeline type, permit, tort claim, local ordinance, franchise text, or PHMSA/state-agreement record supplied.
Motion-element coverage	Not complete; this is an authority audit, not a finished motion.

Required Fixes Before Filing-Facing Use

- Run Shepard's/KeyCite or equivalent citator review on every case authority.
- Replace verification-aid copies with official reporter/page images or certified database copies for filing work.
- Add pinpoints for every proposition.
- Identify the pipeline type, commodity, interstate/intrastate status, operator role, state certification/agreement status, and PHMSA regulatory provisions.
- Classify the challenged state/local duty as safety standard, tort liability, zoning/land use, location/routing, one-call, franchise, contract, or emergency-response requirement.
- Map record cites to design, construction, operations, maintenance, public-awareness/warning, emergency-response, causation, damages, and requested remedy.

Batch Status

Field	Status
Verified authorities counted	10
Candidate authorities excluded	6 reserve items, 0 counted
Unresolved authorities	0 as to existence/citation; all case authorities unresolved as to citator-grade treatment
FilingReady	Not yet determinable
Suggested next command	Run next topic.

Source Appendix

Clean source links are included for audit traceability. Verification-aid sources are not filing text authority sources.

Source	Type	URL
49 U.S.C. Ch. 601 / §§ 60104-60106	official statute	https://uscode.house.gov/view.xhtml?edition=prelim&path=%2Fprelim%40title49%2Fsubtitle8%2Fchapter601
49 U.S.C. § 60120	official statute	https://uscode.house.gov/view.xhtml?edition=prelim&num=0&req=granuleid%3AUSC-prelim-title49-section60120
49 C.F.R. Part 192	official regulation	https://www.ecfr.gov/current/title-49/subtitle-B/chapter-I/subchapter-D/part-192
49 C.F.R. Part 195	official regulation	https://www.ecfr.gov/current/title-49/subtitle-B/chapter-I/subchapter-D/part-195
ANR Pipeline Co. v. Iowa State Commerce Comm'n	verification aid	https://law.justia.com/cases/federal/appellate-courts/F2/828/465/368582/
Kinley Corp. v. Iowa Utils. Bd.	verification aid	https://law.justia.com/cases/federal/appellate-courts/F2/999/354/308800/
Olympic Pipe Line Co. v. City of Seattle	verification aid	https://law.justia.com/cases/federal/appellate-courts/F3/437/872/477684/
Texas Midstream Gas Servs. v. City of Grand Prairie	official Fifth Circuit PDF via GovInfo	https://www.govinfo.gov/content/pkg/USCOURTS-ca5-08-11200/pdf/USCOURTS-ca5-08-11200-0.pdf
Washington Gas Light Co. v. Prince George's Cnty. Council	official Fourth Circuit PDF	https://www.ca4.uscourts.gov/Opinions/Published/121443.P.pdf
Couser v. Shelby Cnty., Iowa	official Eighth Circuit PDF	https://ecf.ca8.uscourts.gov/opndir/25/06/233758P.pdf
Shelby County v. Couser, No. 25-419	official Supreme Court docket	https://www.supremecourt.gov/docket/docketfiles/html/public/25-419.html
National Fuel Gas Supply Corp. v. Pub. Serv. Comm'n	verification aid / candidate queue	https://law.justia.com/cases/federal/appellate-courts/F2/894/571/306975/

Content SHA-256

SHA-256 over audit text and original prompt before final PDF rendering:

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Original Prompt Appendix

□ run topic O: Energy and pipeline safety preemption — Natural Gas Pipeline Safety Act, PHMSA pipeline rules, state tort claims, design/operations warnings, permit/franchise issues, and savings boundaries.

400 pm on Sunday June 14.

BriefWise Clean Air Act State-Law Nuisance/Trespass Preemption Source-Locked Audit

Generated: 2026-06-14T04:21:07+00:00

Grounded DI LLC | Source-Locked Authority Audit

****FilingReady:** Not yet determinable.** This is an audit-building artifact only.

Topic

Clean Air Act and state-law nuisance/trespass preemption – savings clauses, source-state tort claims, permit compliance, American Electric Power displacement, Bell, Merrick, TVA, and emissions-damage limits.

Brief Summary

This audit identifies 10 source-verified authorities for Clean Air Act preemption and savings issues involving state-law nuisance, trespass, source-state tort claims, permit compliance, federal common-law displacement, and emissions-damage limits. The key demo tension is AEP / TVA versus Bell / Merrick: AEP displaces federal common-law nuisance claims seeking emissions caps, and TVA strongly limits affected-state/extraterritorial nuisance remedies, but Bell and Merrick preserve properly framed source-state common-law damages claims. FilingReady status cannot be confirmed because citator-grade treatment, pinpoints, forum, source-state law, permit terms, pollutants, causation, and remedy posture remain unresolved.

Verification Summary

Item Result
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Verified authorities counted 10
AI-memory-only authorities counted 0
Candidate/reserve authorities excluded 6
Citator-grade treatment review UNRESOLVED – verification required
Quote fidelity review Not performed; no filing quote should be used from this audit
Topic complete Yes for initial source-locked audit; No for FilingReady

Verified Authority Table

Authority Category Filing use
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1 42 U.S.C. § 7416 CAA state-authority savings / more-stringent standards Use as the statutory starting point for preserved state authority over stationary-source air pollution, subject to other CAA limits.
2 42 U.S.C. § 7604(e) CAA citizen-suit savings clause Use to resist arguments that the CAA citizen-suit section alone eliminates

all other common-law or statutory relief. |
3	42 U.S.C. § 7426	Interstate pollution abatement	Use to frame affected-state and political-subdivision administrative remedies for interstate emissions before EPA.
4	42 U.S.C. § 7661c(f)	Title V permit shield	Use for Title V permit-compliance and permit-shield arguments.
5	40 C.F.R. § 70.6(f)	Regulatory Title V permit shield	Use with § 7661c(f) to determine the regulatory scope of a state operating permit program's permit shield.
6	American Electric Power Co. v. Connecticut, 564 U.S. 410 (2011)	Federal common-law displacement	Use to block federal common-law public-nuisance claims seeking emissions caps for greenhouse-gas emissions from power plants.
7	International Paper Co. v. Ouellette, 479 U.S. 481 (1987)	Source-state common-law framework	Use as the controlling source-state-law template that Clean Air Act cases commonly borrow by analogy.
8	North Carolina ex rel. Cooper v. Tennessee Valley Auth., 615 F.3d 291 (4th Cir. 2010)	Affected-state nuisance / interstate emissions limit	Use as the major defense-side counterweight to source-state cases where a state attempts to impose its own nuisance standards on out-of-state power plants.
9	Bell v. Cheswick Generating Station, 734 F.3d 188 (3d Cir. 2013)	Source-state tort claims / permit compliance	Use as the leading Third Circuit source-state tort survival case for property-damage claims from stationary-source air emissions.
10	Merrick v. Diageo Americas Supply, Inc., 805 F.3d 685 (6th Cir. 2015)	Source-state nuisance / emissions-damage claims	Use as the leading Sixth Circuit source-state tort survival case for nuisance claims against an in-state air-emissions source.

Authority Detail Cards

1. 42 U.S.C. § 7416

- ****Category:**** CAA state-authority savings / more-stringent standards
- ****Core proposition:**** The CAA generally preserves state and local authority to adopt or enforce emission standards or limitations and air-pollution abatement requirements, so long as they are not less stringent than federal requirements and except as otherwise provided.
- ****Authority type:**** Controlling federal statute.
- ****Treatment status:**** Current text source-verified through the U.S. Code. Citator treatment not applicable, but statutory interaction and case-law limits must be jurisdiction-checked.
- ****Required fix:**** Pair with AEP, Ouellette, Bell, Merrick, and TVA before using § 7416 to argue that every state-law remedy survives.

2. 42 U.S.C. § 7604(e)

- ****Category:**** CAA citizen-suit savings clause
- ****Core proposition:**** The CAA citizen-suit savings clause preserves rights under statute or common law to seek enforcement of emission standards or limitations or to seek other relief.

- **Authority type:** Controlling federal statute.
- **Treatment status:** Current text source-verified through the U.S. Code. Citator treatment not applicable.
- **Required fix:** Do not cite § 7604(e) alone; analyze whether the claim is source-state law, affected-state law, federal common law, or a permit collateral attack.

3. 42 U.S.C. § 7426

- **Category:** Interstate pollution abatement
- **Core proposition:** Section 7426 provides notice and petition mechanisms for interstate air-pollution abatement, including petitions that major stationary sources emit or would emit prohibited interstate air pollutants.
- **Authority type:** Controlling federal statute.
- **Treatment status:** Current text source-verified through the U.S. Code. Citator treatment not applicable.
- **Required fix:** Use as a CAA procedural/remedial path for interstate emissions; do not treat it as automatically extinguishing source-state tort remedies.

4. 42 U.S.C. § 7661c(f)

- **Category:** Title V permit shield
- **Core proposition:** Compliance with a Title V permit issued in accordance with the subchapter is deemed compliance with § 7661a when the permit includes the applicable shield.
- **Authority type:** Controlling federal statute.
- **Treatment status:** Current text source-verified through the U.S. Code. Citator treatment not applicable.
- **Required fix:** Verify the actual permit contains a shield, identify covered requirements, and separate regulatory compliance from state-law tort damages.

5. 40 C.F.R. § 70.6(f)

- **Category:** Regulatory Title V permit shield
- **Core proposition:** Part 70 permits may include a shield stating that permit compliance constitutes compliance with identified applicable requirements, subject to specified limits and the terms of the permit.
- **Authority type:** Controlling federal regulation.
- **Treatment status:** Current eCFR text source-verified. Citator treatment not applicable.
- **Required fix:** Analyze the permit terms, omitted requirements, emissions units, reporting conditions, and whether the tort claim challenges conduct outside the shield.

6. American Electric Power Co. v. Connecticut, 564 U.S. 410 (2011)

- **Category:** Federal common-law displacement
- **Core proposition:** The CAA and EPA action authorized by it displace federal common-law public nuisance claims seeking abatement of carbon-dioxide emissions from fossil-fuel-fired power plants; the

Court left state-law preemption issues open.

- **Authority type:** Controlling U.S. Supreme Court authority.
- **Treatment status:** Existence and citation source-verified through U.S. Reports. UNRESOLVED – citator required before filing-facing use.
- **Required fix:** Do not overread AEP as blanket preemption of source-state nuisance/trespass damages claims.

7. International Paper Co. v. Ouellette, 479 U.S. 481 (1987)

- **Category:** Source-state common-law framework
- **Core proposition:** In the CWA context, affected-state nuisance law is preempted for interstate pollution, but source-state common-law claims may proceed; CAA cases such as Bell and Merrick apply this source-state logic.
- **Authority type:** Controlling U.S. Supreme Court authority in CWA; analogical but central in CAA source-state analysis.
- **Treatment status:** Existence and citation source-verified through U.S. Reports. UNRESOLVED – citator required before filing-facing CAA use.
- **Required fix:** Label as CWA authority when used directly, and explain why the CAA savings/state-authority provisions support the analogy.

8. North Carolina ex rel. Cooper v. Tennessee Valley Auth., 615 F.3d 291 (4th Cir. 2010)

- **Category:** Affected-state nuisance / interstate emissions limit
- **Core proposition:** The Fourth Circuit rejected a sweeping public-nuisance injunction against out-of-state TVA plants where the remedy would disrupt the CAA's regulatory structure, upset source-state permitting, and apply affected-state nuisance law extraterritorially.
- **Authority type:** Federal appellate authority; binding in Fourth Circuit, persuasive elsewhere.
- **Treatment status:** Citation and text source-verified through public court/reporting copies; official merits PDF not located in this run. UNRESOLVED – citator required.
- **Required fix:** Use narrowly for affected-state/extraterritorial injunctive relief, not as a categorical bar to source-state damages claims.

9. Bell v. Cheswick Generating Station, 734 F.3d 188 (3d Cir. 2013)

- **Category:** Source-state tort claims / permit compliance
- **Core proposition:** The Third Circuit held that the CAA did not preempt source-state common-law tort claims by Pennsylvania residents against a Pennsylvania power plant for ash and contaminants settling on their property.
- **Authority type:** Federal appellate authority; binding in Third Circuit unless superseded.
- **Treatment status:** Official Third Circuit PDF source-verified. UNRESOLVED – citator required before filing-facing use.
- **Required fix:** Confirm the claim applies source-state law and

does not seek to impose affected-state emission standards or collaterally alter permit limits.

10. Merrick v. Diageo Americas Supply, Inc., 805 F.3d 685 (6th Cir. 2015)

- **Category:** Source-state nuisance / emissions-damage claims
- **Core proposition:** The Sixth Circuit held that the CAA does not preempt common-law claims brought under the law of the state where the emitter operates; it treated source-state tort claims differently from affected-state claims.
- **Authority type:** Federal appellate authority; binding in Sixth Circuit unless superseded.
- **Treatment status:** Citation and public docket/opinion copy source-verified; official court merits PDF not located in this run. UNRESOLVED – citator required.
- **Required fix:** Use with Little as companion support and with TVA as counterweight for affected-state/extraterritorial remedies.

Candidate / Reserve Queue

No AI-suggested authority was counted without source verification. These items are not counted in the 10-authority batch.

Authority	Citation / status	Reason not counted
Her Majesty the Queen in Right of Ontario v. City of Detroit	874 F.2d 332 (6th Cir. 1989)	Relevant early CAA/source-state case; not counted because the 10-authority batch prioritized Merrick and Bell as more direct modern tort-preemption authorities.
Little v. Louisville Gas & Elec. Co.	805 F.3d 695 (6th Cir. 2015)	Strong companion to Merrick and official Sixth Circuit PDF was located; not counted due 10-authority cap and overlap with Merrick.
Freeman v. Grain Processing Corp.	848 N.W.2d 58 (Iowa 2014)	Important state supreme court source-state tort survival authority; not counted because federal statutory/circuit authorities were prioritized.
Union Electric Co. v. EPA	427 U.S. 246 (1976)	Useful state-stringency background for CAA cooperative federalism; not counted because it is not a nuisance/trespass preemption case.
Engine Mfrs. Ass'n v. S. Coast Air Quality Mgmt. Dist.	541 U.S. 246 (2004)	Important CAA preemption case for motor-vehicle/fleet rules; not counted because this batch focuses stationary-source nuisance/trespass and emissions-damage claims.
42 U.S.C. § 7607(b)	CAA judicial-review channeling	Potentially relevant if the claim attacks a permit or EPA action; not counted because the batch centered common-law tort preemption and savings.

Proposition-to-Authority Map

Proposition	Authority	Caution
The CAA displaces federal common-law public-nuisance claims seeking		

emissions caps. | American Electric Power | Federal displacement is not the same as blanket preemption of source-state common-law damages.

| The CAA preserves state authority and citizen-suit savings, but those savings clauses operate within the CAA's cooperative-federalism structure. | 42 U.S.C. §§ 7416, 7604(e) | Savings language must be reconciled with AEP, Ouellette, TVA, Bell, and Merrick. |
| Affected-state nuisance law is vulnerable when used to regulate out-of-state stationary sources. | Ouellette; TVA | TVA is strongest where an affected state seeks extraterritorial injunctive emissions controls. |

| Source-state common-law nuisance/trespass/property-damage claims may survive CAA preemption. | Bell; Merrick; Ouellette | Confirm source state, forum, remedies, permit record, and whether the claim imposes an emissions standard or seeks damages for invasion of property. |

| CAA permit compliance does not automatically eliminate all state-law tort exposure. | Bell; Merrick; 42 U.S.C. § 7661c(f); 40 C.F.R. § 70.6(f) | Permit shield must be analyzed on its terms; regulatory compliance may be evidence but not necessarily immunity. |

| Interstate emissions disputes have administrative CAA pathways, including § 7426 petitions. | 42 U.S.C. § 7426; TVA | A CAA administrative pathway may affect remedy scope, but does not by itself answer source-state tort preemption. |

Treatment / Jurisdiction / Posture Cautions

- Citator-grade treatment is unresolved for all case authorities: UNRESOLVED – verification required.
- AEP displaces federal common law; it expressly does not decide the full scope of state-law preemption.
- Ouellette is a CWA case. For CAA use, label it as source-state analogical authority unless a controlling circuit has adopted it.
- TVA is a defense-side counterweight against affected-state/extraterritorial nuisance remedies; Bell and Merrick are plaintiff-side counterweights for source-state claims.
- Permit compliance and Title V permit-shield language may be relevant but are not automatic immunity from nuisance, trespass, negligence, or property-damage claims.
- Remedy posture matters. Damages for property invasion, abatement, injunctions setting emissions limits, penalties, and collateral permit attacks may be treated differently.

Filing-Use Recommendations

- Lead with the distinction between federal common-law displacement, affected-state preemption, and source-state tort survival.
- For defense use, frame the plaintiff's theory as an attempt to impose affected-state standards, extraterritorial emissions limits, or a collateral attack on CAA permits.
- For plaintiff use, plead source-state nuisance/trespass/negligence law and damages for property invasion rather than a request to impose a separate emissions standard.

- Treat Bell and Merrick as the primary source-state tort survival authorities, and TVA as the required counterweight.
- Build a permit-and-emissions record: source location, governing SIP, Title V permit terms, emissions units, pollutants, monitoring, compliance history, deposition pathway, and damages.

Gatekeeper Findings

Gate	Finding
Hallucinated authority	None counted from AI memory alone.
Proposition support	Supported at high-level only; pinpoints remain required.
Quote fidelity	Not tested; no filing quote should be used from this audit.
Jurisdiction contamination	Moderate: circuit splits/tension require forum-specific handling.
Standard of review	Not posture-specific; MTD, MSJ, injunction, administrative review, and trial damages issues differ.
Docket / posture alignment	No forum, source state, affected state, permit, pollutant, claim type, or remedy supplied.
Motion-element coverage	Not complete; this is an authority audit, not a finished motion.

Required Fixes Before Filing-Facing Use

- Run Shepard's/KeyCite or equivalent citator review on every case authority.
- Replace verification-aid source copies with official reporter/page images or certified database copies for filing work.
- Add pinpoints for every proposition.
- Identify the source state, affected state, forum, pollutants, source category, permit type, SIP provisions, and requested remedy.
- Determine whether the claim is federal common law, affected-state law, source-state law, statutory citizen suit, or common-law damages.
- Map the record to emissions data, fallout/deposition, causation, nuisance/trespass elements, permit compliance, and damages.

Batch Status

Field	Status
Verified authorities counted	10
Candidate authorities excluded	6 reserve items, 0 counted
Unresolved authorities	0 as to existence/citation; all case authorities unresolved as to citator-grade treatment
FilingReady	Not yet determinable
Suggested next command	Run next topic.

Source Appendix

Clean source links are included for audit traceability. Verification-aid sources are not filing text authority sources.

Source	Type	URL
42 U.S.C. § 7416	official statute	https://uscode.house.gov/view.xhtml?edition=prelim&num=0&req=granuleid%3AUSC-prelim-title42-section7416
42 U.S.C. § 7604	official statute	https://uscode.house.gov/view.xhtml?edition=prelim&num=0&req=granuleid%3AUSC-prelim-title42-section7604
42 U.S.C. § 7426	official statute	https://uscode.house.gov/view.xhtml?edition=prelim&num=0&req=granuleid%3AUSC-prelim-title42-section7426
42 U.S.C. § 7661c	official statute	https://uscode.house.gov/view.xhtml?edition=prelim&num=0&req=granuleid%3AUSC-prelim-title42-section7661c
40 C.F.R. § 70.6	official regulation	https://www.ecfr.gov/current/title-40/chapter-I/subchapter-C/part-70/section-70.6
American Electric Power Co. v. Connecticut	official U.S. Reports PDF	https://tile.loc.gov/storage-services/service/ll/usrep/usrep564/usrep564410/usrep564410.pdf
International Paper Co. v. Ouellette	official U.S. Reports PDF	https://www.govinfo.gov/content/pkg/USREPORTS-479/pdf/USREPORTS-479-481.pdf
North Carolina ex rel. Cooper v. TVA	verification aid	https://casetext.com/case/state-v-tennessee-valley-authority-2
Bell v. Cheswick Generating Station	official Third Circuit PDF	https://www2.ca3.uscourts.gov/opinarch/124216p.pdf
Merrick v. Diageo Americas Supply, Inc.	verification aid / public appellate filing	https://docs.justia.com/cases/federal/appellate-courts/ca6/14-6198/6012549377
Little v. Louisville Gas & Elec. Co.	reserve official Sixth Circuit PDF	https://www.ca6.uscourts.gov/opinions.pdf/15a0262p-06.pdf

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Original Prompt Appendix

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● run topic N: Clean Air Act and state-law nuisance/trespass preemption – savings clauses, source-state tort claims, permit compliance, American Electric Power displacement, Bell, Merrick, TVA, and emissions-damage limits.

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